

14. 9:00 AM CASE NUMBER: C25-02784
CASE NAME: PETITION OF: GRANGE INSURANCE ASSOCIATION
HEARING IN RE: PETITION TO PERPETUATE TESTIMONY AND PRESERVE EVIDENCE
FILED BY:
TENTATIVE RULING:

Matter **WITHDRAWN** by moving party's Notice of Withdrawal of Verified Petition filed May 8, 2026. The hearing is **VACATED**.

15. 9:00 AM CASE NUMBER: C25-03125
CASE NAME: JAMES GUIDRY VS. FELICIA PHO
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT**
FILED BY: PHO, FELICIA
TENTATIVE RULING:

This matter is **CONTINUED**, *sua sponte* by the Court, to **July 20, 2026, 9:00 am** in **Department 34**.

16. 9:00 AM CASE NUMBER: C26-00553
CASE NAME: KENNETH COLE VS. HYUNDAI MOTOR AMERICA
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: HYUNDAI MOTOR AMERICA
TENTATIVE RULING:

This matter is **CONTINUED**, pursuant to the Stipulation of the parties, to June 29, 2026.

17. 9:00 AM CASE NUMBER: MSC17-01220
CASE NAME: STATE FARM VS MILLER
***HEARING ON MOTION IN RE: VACATE DISMISSAL AND ENFORCE SETTLEMENT**
FILED BY: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY
TENTATIVE RULING:

Plaintiff State Farm Mutual Automobile Insurance Company ("Plaintiff") filed a Motion to Vacate Dismissal, Enforce Settlement and Enter Judgment on January 7, 2026 ("Motion to Enforce Settlement"). The Motion to Enforce Settlement was set for hearing on May 18, 2025. The motion is unopposed.

Background

The parties entered into that certain settlement agreement on or about May 3, 2018 (the "Settlement Agreement"), the terms of which included payment by the defendant Tanika Channel Miller ("Defendant") in the amount of \$79,776.50, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Brian P. Tapper filed January 7, 2026 as part of the Motion to Enforce Settlement ("Supporting Declaration"), ¶2 and **Exhibit A** thereto (Settlement Agreement and Stipulation for Entry of Judgment).

Analysis

The Settlement Agreement includes a provision that it is enforceable pursuant to Code of Civil Procedure section 664.6 and jurisdiction is reserved to the Court for that purpose. Settlement Agreement, ¶13.3, Supporting Declaration, **Exhibit A**.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶¶4-6.

The Settlement Agreement requires notice and an opportunity to cure. See Settlement Agreement, ¶1, Supporting Declaration, **Exhibit A** (Judgment after default may only be entered “after the defaulting Defendant is sent a TEN (10) DAYS notice of default”).

The Supporting Declaration fails to indicate service of a ten-day notice of default, as required. See Supporting Declaration, ¶¶1-6. Nothing in the Settlement Agreement indicates that service of the motion is tantamount to the giving of such notice. For this reason alone, the Court denies the motion.

However, even if a ten-day notice of default were not required, the Court further observes that it does not appear that the motion papers, as served, had the hearing information specified on the caption at the time of service. See Proof of Service dated January 6, 2026. Though the papers were served January 6, 2026, it appears that was before the clerk added the hearing information to the caption of the papers when the motion was filed on January 7, 2026.

Typically, a moving party files an amended notice of motion reflecting the assigned hearing date in those circumstances where the clerk processes the motion papers for filing and adds the hearing information after the initial papers were served, including the notice of motion (often containing a blank space for hearing date and location information to be added, as it appears was the case here).

Disposition

The Court finds and orders as follows:

1. The Motion to Enforce Settlement is **DENIED**, without prejudice.
2. The Court shall issue the order after hearing.

18. 9:00 AM CASE NUMBER: N25-1244
CASE NAME: MALINA CURIALE VS. RUBY LIU
HEARING IN RE: MOTION TO SET ASIDE VOID JUDGMENT
FILED BY:

TENTATIVE RULING:

The Motion to Set Aside Void Judgment is **CONTINUED** by the Court to June 22, 2026 at 9:00 a.m.